

SITA SOREN V. UNION OF INDIA

Citation: Criminal Appeal No. 451 of 2019; 2024 INSC 161

Date of Order: 4th March 2024

7 Judge Bench: CJI Dr. DY Chandrachud, Justice A.S. Bopanna, Justice M.M. Sundresh, Justice Pamidighantam Sri Narasimha, Justice J.B. Padriwala, Justice Sanjay Kumar, Justice Manoj Misra

TABLE OF CONTENTS

FACTS.....	2
ISSUE.....	2
RULE	3
SUBMISSIONS.....	5
Appellant	5
Respondents	5
Amicus curiae.....	6
Intervenors.....	6
ANALYSIS	6
Reconsidering PV Narasimha Rao does not violate the principle of <i>stare decisis</i>	6
History of parliamentary privilege in India	7
Purport of parliamentary privilege in India	7
i. Functional analysis.....	7
ii. Parliamentary privilege as a collective right of the House	7
iii. Necessity test to claim and exercise a privilege.....	7
Bribery is not protected by parliamentary privilege.....	8
i. Bribery is not in respect of anything said or any vote given.....	8
ii. The Constitution envisions probity in public life	8
iii. Courts and the House exercise parallel jurisdiction over allegations of bribery	8
iv. Delivery of results is irrelevant to the offence of bribery	8
International position on bribery vis-à-vis privileges.....	8
A. United Kingdom.....	8

B. United States of America.....	9
C. Canada	9
D. Australia.....	9
Elections to the Rajya Sabha are within the remit of Article 194(2).....	9
CONCLUSION	9

FACTS

Elections were held on 30th March 2012, to elect two members of the Rajya Sabha representing the State of Jharkhand. During the election, an MLA (*the appellant*) was accused of accepting a bribe to vote for an independent candidate. However, she ultimately voted for the member from her own party. The round of voting was annulled, and the appellant voted again for the same member from her party.

The appellant claimed protection under Article 194(2) of the Constitution and cited the case of *PV Narasimha Rao* to request the High Court to quash the chargesheet and criminal proceedings against her. However, the High Court declined to quash the proceedings because the appellant was not entitled to protection under Article 194(2) since she did not vote in favour of the bribe giver.

The two judge bench of the Hon'ble Court referred the appeals to a larger bench since the case is of general public importance. The three-judge bench held that the question in hand was dealt in the judgement of five judge bench in *PV Narasimha Rao*, and hence should be referred to larger bench. The five-judge bench ultimately referred to the seven judge bench.

ISSUE

Does a legislator enjoy immunity from prosecution under Article 105(2) or Article 194(2) of the Constitution of India for accepting bribes to vote in Parliament or a State Legislative Assembly?

RULE

List of cases cited along with principles relied on

CASE	PRINCIPLE
PV Narasimha Rao v. State (CBI/SPE) (1998) 4 SCC 626	
Shanker Raju v. Union of India, (2011) 2 SCC 132.	The two-judge Bench was bound by the decision of a bench of larger strength adjudicating a similar issue and could not reconsider the view taken in that decision merely because an alternative view was available.
Shah Faesal v. Union of India, (2020) 4 SCC 1	While laying down the law on the doctrine of stare decisis, the Court held that in certain cases the Court may reconsider its decisions, particularly when they prove to be “unworkable” or “contrary to well-established principles”.
Keshav Mills Co. Ltd. v. CIT (1965) 2 SCR 908.	Court should ask itself whether in the interests of the public good or for any other valid and compulsive reasons, it is necessary that the earlier decision should be revised.
Krishena Kumar v. Union of India (1990) 4 SCC 207.	Although the Court did not find compelling reasons to reconsider its previous decisions in that factual context, it recognized that the Court does have the power to do so in order to “remedy continued injustice” or due to “considerations of public policy”.
Ajit Mohan v. Legislative Assembly, National Capital Territory of Delhi, (2022) 3 SCC 529	There are “divergent views” amongst constitutional experts on “whether full play must be given to the powers, privileges, and immunities of legislative bodies, as originally defined in the Constitution, or (whether it) is to be restricted.” However, it has been urged, that this Court refused to express its views on the matter on the ground that such an opinion must be left to the Parliament.
Pashupati Nath Sukul v. Nem Chandra Jain and Ors., (1984) 2 SCC 404	Polling to the Rajya Sabha is not protected by Article 194(2) on the ground that such an election does not form part of the

Madhukar Jetly v. Union of India, (1997) 11 SCC 111	legislative proceedings of the House regardless of the geographical location of the election.
Kuldip Nayar v. Union of India, (2006) 7 SCC 1	
Central Board of Dawoodi Bohra Community vs. State of Maharashtra, (2005) 2 SCC 673	The correctness of the view in the judgment of the majority does not fall for consideration in the present case. Should it become necessary in an appropriate case in future, a larger Bench may have to consider the issue.
Kalpana Mehta v. Union of India, (2018) 7 SCC 1	
Raja Ram Pal v. Hon'ble Speaker, Lok Sabha (2007) 3 SCC 184	
Tej Kiran Jain v. N Sanjeeva Reddy, (1970) 2 SCC 272	Article 105(2) confers immunity in respect of “anything said” so long as it is “in Parliament.” Therefore, the immunity is qualified by the fact that it must be attracted to speech during the conduct of business in Parliament.
Special Reference No. 1 of 1964, 1964 SCC OnLine SC 21	The Parliament or Legislature is not the sole judge of its privileges, and the courts have the power to enquire if a particular privilege claimed by the legislature in fact existed or not, by consulting the privileges of the Commons. The determination of privileges, the Court held, and whether they conform to the parameters of the Constitution is a question that must be answered by the courts.
State of Karnataka v. Union of India, (1977) 4 SCC 608	whenever a question arises whether the House has jurisdiction over a matter under its privileges, the adjudication of such a claim is vested exclusively in the courts. They are powers which depend upon and are necessary for the conduct of the business of each House.
State of Kerala v. K Ajith, (2021) 17 SCC 318	Constitution recognises privileges and immunities to create an environment in which members of the House can perform their

	functions and discharge their duties freely. These privileges bear a functional relationship to the discharge of the functions of a legislator. They are not a mark of status which makes legislators stand on an unequal pedestal.
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SUBMISSIONS

Appellant

Overruling of precedent laid down in judgement of *PV Narasimha Rao* was unnecessary as it undermines the immunity granted to MPs and MLAs. This immunity, rooted in the Constitution, protects legislators from oppression and ensures their dignity. The majority judgement rightly preserved this privilege, recognising Parliament's exclusive powers to address corruption within its ranks.

Relying on the judgements in cases of *Shanker Raju*, *Shah Faisal*, *Keshav Mills* and *Krishena Kumar*, the proposition was reiterated that (i) the doctrine of stare decisis promotes certainty and consistency in law; (ii) the Court should not make references to reconsider a prior decision in a cavalier manner; and (iii) a settled position of law should not be disturbed merely because an alternative view is available.

Relying on the *Ajit Mohan case*, it was argued that the Court should refrain from taking a conclusive view on the issue, leaving it for Parliament to decide.

Respondents

The PV Narasimha Rao decision is inapplicable to the current case, as the exercise of franchise in a Rajya Sabha election is not protected under Article 194(2). The election process is not a legislative function and therefore falls outside the article's scope.

Relying on three judgements i.e., *Pashupati Nath Sukul*, *Madhukar Jetly* and *Kuldip Nayar*, it was submitted that PV Narasimha Rao was inapplicable because Rajya Sabha elections are not part of legislative functions.

Amicus curiae

The majority judgement incorrectly grants immunity to MPs from criminal prosecution for accepting bribes to cast votes in Parliament. The minority judgement correctly states that bribery is a separate offence from voting and is not protected by parliamentary privilege.

Intervenors

The minority judgement in the majority judgement should be relied upon, as the word “any” in Articles 105 and 194 should be narrowly interpreted. The offence of bribery is complete upon receipt of the bribe, regardless of subsequent actions.

ANALYSIS

Reconsidering PV Narasimha Rao does not violate the principle of stare decisis

Referring to the cases of *Dawoodi Bohra Community*, *Kalpana Mehta* and *Raja Ram Pal*, it was pointed out that a larger bench can question the corrections of decision by a lesser strength or equal strength bench, but a lesser strength bench cannot question the decision rendered by larger bench.

The High Court’s question in this case is similar to the one in the case of *PV Narasimha*. The counsel’s submissions and the High Court’s analysis are based on the law laid down in *PV Narasimha*, which states that since the vote was not cast as promised, immunity will not be granted. Therefore, this bench can reconsider the decision in *PV Narasimha*.

The cases referred by the appellants for the doctrine of stare decisis were analysed and it was held that as per the facts of those cases, the court had no compelling reason to reconsider certain judgements of the court. Also, the argument citing *Ajit Mohan* case is deemed misconceived as this judgement interprets Articles 105 and 194 of the Constitution, not the powers and privileges of the legislature.

Therefore, a mistaken interpretation of the Constitution should not be upheld due to rigid adherence to a previous opinion.

History of parliamentary privilege in India

The judgment traces the evolution of parliamentary privilege in India from colonial times through various Government of India Acts to the Constitution of India. It notes that the demand for parliamentary privileges in pre-independence India was always connected to the functions that legislators sought to discharge and never meant as a blanket immunity from criminal law. The Court observed that the Constitution was intended to be a "modernising force" with parliamentary democracy as its first modernising influence, aimed at creating a society that eschews discrimination and social hierarchies.

Purport of parliamentary privilege in India

i. Functional analysis

Citing the case of *Alagaapuram R Mohanraj* and *Tej Kiran Jain*, the difference between various freedoms of speech was mentioned, that is, Article 19(1)(a) gives freedom of speech to every citizen. Article 105 is only available to member of the legislature during the tenure and is limited to the premises of the legislative bodies. Referring to the case of *Kalpana Mehta* it was held that freedom of speech in Parliament ensures that the government is held accountable by the House.

It was held in the *Special Reference No. 1 of 1964* that the content of Article 194(3) must ultimately be determined by courts and not by the legislatures; and the same has been upheld in cases of *State of Karnataka vs. UOI*, *Raja Ram Pal*, and *Amarinder Singh*.

ii. Parliamentary privilege as a collective right of the House

The Court referring to the case of *K Ajith* emphasised that privileges are primarily enjoyed by the House collectively, while members enjoy certain privileges individually only to the extent necessary for the functioning of the House. These individual privileges are not an end in themselves but facilitate the effective discharge of collective functions.

iii. Necessity test to claim and exercise a privilege

The Court referring to the case of *State of Karnataka*, articulated a test for parliamentary privilege: the privilege claimed must be tethered to the collective functioning of the House and its necessity must bear a functional relationship to the discharge of essential legislative duties.

Bribery is not protected by parliamentary privilege

i. Bribery is not in respect of anything said or any vote given

The Hon'ble Court analysed landmark judgements discussing the immunity granted to members of the legislature under Article 105. It concluded that 'anything said' or 'any vote given' only covers the vote given or speech made in the parliament or legislature. Therefore, it cannot be prosecuted in court. However, any other act is not protected under this immunity. Bribery, being independent of speech or vote, is not protected either.

ii. The Constitution envisions probity in public life

The purpose of Articles 105 and 194 is to create a fearless atmosphere for debate and deliberation, which is undermined when members are induced to vote based on bribes rather than their conscience or belief.

iii. Courts and the House exercise parallel jurisdiction over allegations of bribery

Criminal prosecution for bribery and the House's disciplinary action against a member serve different purposes. The criminal court's jurisdiction over the offence of bribery is not excluded merely because the House may also take action against the member.

iv. Delivery of results is irrelevant to the offence of bribery

The offence of bribery under the Prevention of Corruption Act is complete upon accepting or agreeing to accept an undue advantage, regardless of whether the promised act is performed. Therefore, the distinction made in *P.V. Narasimha Rao* between members who follow through on their bribe agreement and those who do not is artificial.

International position on bribery vis-à-vis privileges

The Hon'ble court decided to discuss the law relating to issue of bribery by member of parliament in different countries as the judgement in *P.V. Narasimha Rao* have relied on jurisprudence in foreign countries.

A. United Kingdom

The UK has evolved from treating bribery of members as solely a breach of parliamentary privilege to making it a criminal offence under the Bribery Act 2010. The courts have

narrowly interpreted parliamentary immunity to cover only the core functions of Parliament.

B. United States of America

The US Supreme Court has consistently held that the Speech and Debate Clause does not provide immunity from prosecution for bribery, though it prevents prosecutors from using the speech or vote itself as evidence.

C. Canada

Canadian courts have held that bribery of legislators falls within the jurisdiction of criminal courts and is not shielded by parliamentary privilege.

D. Australia

Australian jurisprudence since 1875 has consistently held that bribing a member of the legislature constitutes a criminal offence under common law.

Elections to the Rajya Sabha are within the remit of Article 194(2)

The Court rejected the respondent's argument holding that Article 194(2) consciously uses the term "Legislature" rather than "House" to include parliamentary processes that may not take place on the floor of the House when it is in session. The Court emphasised that the protection under Articles 105 and 194 is not limited to law-making on the floor of the House but extends to other powers and responsibilities of elected members, including voting in Rajya Sabha elections.

CONCLUSION

The Supreme Court unanimously overruled the majority judgment in PV Narasimha Rao, holding that a member of Parliament or a state legislature cannot claim immunity from prosecution on a charge of bribery under Articles 105(2) and 194(2).

The key conclusions were:

1. The claim of privilege in bribery cases fails the twofold test that it must be tethered to the collective functioning of the House and necessary for the discharge of essential legislative duties.

2. Bribery undermines the purpose of Articles 105 and 194, which is to sustain an environment for free debate and deliberation.
3. The offence of bribery is complete upon accepting the bribe, independent of whether the vote is cast as agreed.
4. The paradoxical outcome in PV Narasimha Rao, where members who follow through on their corrupt bargain are immune while those who do not are liable, is contrary to the text and purpose of Articles 105 and 194.
5. The jurisdictions of criminal courts to prosecute bribery and the House to discipline its members exist in distinct spheres with different purposes and consequences.

Therefore, proceedings against Sita Soren can proceed.

Chambers of Vanshika Mittal